

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity: Library of Congress, Copyright Office

Office of General Counsel/Copyright Claims Board

2. Nature of Action Being Approved

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☐ GSA Schedule or GWAC
- ☐ Other

Plan ID Number: 2026-COP-0012

Contractor (or Brand Name): NIC Technologies

Estimated Value (Base and all options): [REDACTED]

Period of Performance: 04/23/2026-04/22/2028

3. Description of Supplies or Services Required to Meet Library Needs

The CASE Act, passed in December 2020, established the Copyright Claims Board (CCB) within the United States Copyright Office (the Copyright Office) to resolve copyright infringement and certain other copyright claims below a certain monetary value (“small copyright claims”) and required dedicated resources to support its startup and operation. The CASE Act required the CCB to begin operations within one year after the date of enactment which was completed on December 27, 2021.

The Library of Congress (Library) requires contract support to maintain the electronic filing and case management solution for the CCB. The Library requires licensing and cloud hosting of the electronic filing and case management system (eCCB), as well as maintenance, updates and customer support.

The underlying software that the eCCB system is built on is the property of NIC Technologies and is licensed by the Library. The purpose of the Library’s requirement is to continue the licensing and cloud hosting, including support and maintenance for the existing eCCB system so that the Library can maintain the eCCB system that is already in place. The Library requires the support and maintenance to receive technical and security updates, in order to keep the eCCB system up to date. The Library is not requesting new features, but rather is requesting support to operate the systems that have already been put in place.

The licensing, cloud hosting and maintenance services include:

- All applicable application based licensing for eCCB including Accusoft, Deque, AWS Hosting and NIC Corporate Services.
- Routine maintenance, bug fixes, and patches to correct programming errors, address security updates, and maintain capability and performance levels.
- Providing support of at least four (4) technical inquiries requested per month and quarterly (4) content updates to the eCCB system. The inquiries may increase or decrease. Support shall be provided as ad hoc telephone and/or email communication that address inquiries to cover any troubleshooting, web application error resolution, performance issue resolution, security issue resolution, and disaster recovery items. Problem resolution may coincide with the updates to the eCCB content.
- Providing maintenance via ad hoc telephone and/or email support to include any advisory assistance. All application, system errors, issues, and bugs identified by users will be reported in accordance with the SLAs above.

- Provide updated documents after any sort of software or architecture configuration change made by the contractor on its own or at the request of the CCB.
- Provide eCCB system updates, patch required security findings, and install updates from external systems eCCB utilizes, such as Login.gov, Adaptive, and Accusoft. The contractor will provide testing for related security patches and vendor updates.
- Information for the Library to complete the IT contingency plan per LCD 5-620 IT Business Continuity and Disaster Recover.
- Provide general support and compliance with prescribed OCIO processes including but not limited to incident escalation.
- Provide support and proper resolution for unforeseen issues, security incidents, disasters and other contingencies, material changes to the system configuration, and new interconnections.
- Remediate software vulnerabilities.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition Over \$250,000

For this requirement over \$250,000, under FAR part 6, the basis for contracting without providing for full and open competition is:

- ☒ There is only one responsible source and no other supplies or services will satisfy Library requirements.
41 U.S.C. § 6101(b)(2)(C); FAR 6.302-1.
- ☒ Library's minimum needs can only be satisfied by contractor's unique capabilities or products. FAR 6.302-1(b)(1).

5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because:

The eCCB system support is essential to the Library, because without it the Copyright Office will be unable to conduct Copyright small claims as is required by the CASE-Act. The eCCB system support serves a critical role in the Library, as it will allow the Library to continue to use the eCCB system to conduct Copyright small claims. NIC Technologies is the only source that can provide the eCCB system hosting, licensing and support that will satisfy the Library's requirements.

All support must be enacted by NIC Technologies, because NIC Technologies owns the eCCB system. NIC Technologies does not have any authorized resellers, so the Library's requirements can only be provided by NIC Technologies. Using unauthorized parties to provide maintenance and support services may void the Library's warranties and pose a technical, security, and business risk, such as the loss of use of the eCCB system and/or corruption of data or systems.

6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

To increase competition, we will: The Library will conduct a full and open competition for this requirement in 2027. Regardless of the results of the full and open competition, the Library will require the current cloud hosting and maintenance support to continue to allow time to develop and transition to a new platform. Prior to the full and open competition, the Library will conduct additional market research and monitor the marketplace for alternative solutions that will fulfill the Library's requirements.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

[Redacted]

Name

[Redacted]

Title

[Redacted]

Signature

Date

PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☒ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☐ Advance notice will not be published because the action meets the following FAR exception:
- ☐ Notice would compromise national security. FAR 5.202(a)(1).
 - ☐ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
 - ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
 - ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
 - ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
 - ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 7-210 § 3.A.

We made the following efforts to interest potential sources in this award: We contacted NIC Technologies to confirm that they do not have any authorized resellers.

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: None

10. Additional Information

The following additional information is relevant to this justification and approval: N/A

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|---|--|
| ☒ Historical prices paid by the Government | ☐ Published competitive price lists |
| ☒ Library's Independent Government Estimate | ☐ Prices obtained through market research |
| ☐ Other: | ☐ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination: The contracting officer will conduct a price analysis upon receipt of the offer.

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: There is only one vendor who can provide the hosting, licensing and support required. Pricing will be determined fair and reasonable using one or more of the methods above.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$750,000, I approve contracting without competition for this requirement.

[Redacted]

Name

[Redacted]

Signature

[Redacted]

Date

Part 4 – Competition Advocate Approval
(Required for actions valued at greater than \$750,000)

☒ **Approved.** Based on the information, determinations, and certifications provided by the program office and the contracting officer, and in accordance with the instructions below, I approve contracting without competition for this requirement.

Option periods:

☐ No

☒ Yes, one option period through 04/22/2028

☐ **Not Approved.** As explained below, I do not approve contracting without competition for this requirement.

Comments or instructions:

Name

Title

Signature

Date